

BJR

Date: 5/10/2017

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE CREATING SECTIONS 8.60.181, NOTICE TO LIENHOLDER, AND 8.60.182, JUNK VEHICLE IMPOUNDMENT—TRANSFER OF TITLE TO THE CITY, OF CHAPTER 8.60, NUISANCES, OF TITLE 8, HEALTH AND SAFETY, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Sections 8.60.181, Notice to Lienholder and 8.60.182, Junk Vehicle Impoundment—Transfer of Title to the City, of Chapter 8.60, Nuisances, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming, are hereby created as set out in this ordinance. Sections currently existing within Chapter 8.60 not set out within this ordinance remain unchanged.

8.60.181 Notice to lienholder.

Upon abatement by impoundment of any junk vehicle, as defined in Section 8.60.080, the city shall provide written notification to any lienholder of record, stating the grounds for removal and the name of the garage or place of impoundment of such vehicle. Notice shall not be required if the retail value of the junk vehicle is less than two thousand dollars (\$2,000.00), as determined by the nuisance officer, as defined in Section 8.60.020. The city shall forward a copy of the notice to the owner and the person in charge of the garage or place of impoundment.

8.60.182 Junk Vehicle Impoundment—Transfer of Title to the City.

If the city has abated any junk vehicle by impoundment, and the owner or lienholder of the junk vehicle fails to reclaim such junk vehicle and pay the costs of the abatement within thirty (30) calendar days after the abatement by impoundment, title to the junk vehicle shall vest in the city. If the owner of the junk vehicle fails to reclaim any personal property located inside the junk vehicle during the impoundment period, the city shall dispose of that personal property at the conclusion of the impoundment period. A change in title to the impounded junk vehicle may be obtained by the city according to the authority of this chapter and the procedure established in state statutes to obtain a change in title. *If the junk vehicle is sold by the city and a balance remains after all the city's costs of abatement are reimbursed, said balance shall be returned to original junk vehicle owner.*

Section 2. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING:

Marian J. Orr, Mayor

(SEAL)

Attest:

Carol Intlekofer, City Clerk

Publish: Wyoming Tribune Eagle